

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
GLADSTONE BARRETT,
GARTH AMOS,
DAMAR HECKSTALL,
ASHWELL MILLER,

Plaintiffs

-against-

THE CITY OF NEW YORK,
P.O. MICHAEL FISCHER, TAX REG.# 957589,
P.O. TIMOTHY RUSSO, TAX REG. # 953352,
P.O. DARNELL GOODLING, TAX REG #958616,
DET. THOMAS LYONS, TAX REG # 946517,
AND JOHN AND JANE DOES 1-20,Defendants
-----XIndex No: _____
Date Filed: _____**SUMMONS & VERIFIED
COMPLAINT**Plaintiff designates Queens
County as the place of trial

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on plaintiffs' Attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATE:FOREST HILLS, NY
July 23, 2019EDWARD ZALOB, ESQ.,
Attorney for Plaintiffs
118-21 Queens Blvd., Ste #504
Forest Hills, NY 11375**Defendant's Addresses**THE CITY OF NEW YORK
100 Church Street
New York, NYP.O. MICHAEL FISCHER, TAX REG.# 957589, 113TH Pct
P.O. TIMOTHY RUSSO, TAX REG. # 953352, 103RD Pct
P.O. DARNELL GOODLING, TAX REG #958616, 122ND Pct
DET. THOMAS LYONS, TAX REG # 946517, 113th Pct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
GLADSTONE BARRETT
GARTH AMOS
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Plaintiffs

**VERIFIED
COMPLAINT***-against-*THE CITY OF NEW YORK,
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-----X

Plaintiff GLADSTONE BARRETT, GARTH AMOS, DAMAR HECKSTALL and ASHWELL MILLER, by their attorney Edward Zaloba, Esq., complaining of the defendants, respectfully allege, upon information and belief, as follows:

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

1. That at all time of the commencement of this action, Plaintiffs, GLADSTONE BARRETT, GARTH AMOS, DAMAR HECKSTALL and ASHWELL MILLER, resided in the County of Queens, State of New York.

2. That the cause of action alleged herein arose in the County of Queens, City and State of New York.

3. That Notice of Claims with the CITY OF NEW YORK were filed on behalf of all the plaintiffs on or about January 3, 2019.

4. That on February 22, 2019, 50H hearings were held on behalf of all plaintiffs and all plaintiffs testified. That the defendant City has not resolved said matters at this time.

5. That this action falls within one or more of the exemptions set forth in CPLR §1602.

6. That on October 9, 2018, and at all times herein mentioned, Defendants THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. That at all times herein mentioned, the Defendant, THE CITY OF NEW YORK, was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. That at all times herein mentioned, the Defendant, THE CITY OF NEW YORK, maintained its principal place of business in the County of New York, State of New York.

9. That at all times herein mentioned, the Defendant, THE CITY OF NEW YORK, was a municipal corporation and it operated and maintained a Police Department within the boundaries of the City of New York and more particularly in the County of Queens, City and State of New York.

10. That upon information and belief, on or about October 9, 2018, and thereafter, the defendants P.O. FISCHER, P.O. RUSSO, P.O. GOODLING, DET. THOMAS LYONS, and JOHN and JANE DOES 1-20 were employed by the CITY OF NEW YORK, as police officers with the NEW YORK CITY POLICE DEPARTMENT.

11. That on October 9, 2018, the defendants were acting within the scope of their employment with the CITY OF NEW YORK.

12. That upon information and belief, that approximately the same date and general area, the defendants and numerous other unknown officers unlawfully seized approximately 30 other various van drivers without cause and subjected them to unlawful imprisonment interrogation and false arrest and issuance of false tickets.

13. That upon information and belief, this egregious conduct of the defendants herein as well as those incident aforementioned involving other unknown officers and victims was directed and caused by police of rank and supervisor(s).

EXPLANATION**PLAINTIFF – GLADSTONE BARRETT**

14. On October 9, 2018, at approximately 7:45 a.m. plaintiff Gladstone Barnett was lawfully driving his van, and had committed neither an infraction nor violation.

15. That the defendant Officer Russo, and other unknown officers stopped and ceased the plaintiff while driving on Merrick Boulevard and 104th Avenue, Queens, New York in the confines of the 103rd precinct.

16. That plaintiff Gladstone Barrett was seized all without probable cause.

17. That plaintiff Gladstone Barrett was handcuffed and taken to the 113th precinct.

18. That plaintiff Gladstone Barrett was seized, held in lockup thereat for a substantial number of hours.

19. That plaintiff Gladstone Barrett was interrogated by other officers including one Cruzado, thereafter falsely issued a summons by Defendant Officer Russo.

20. That plaintiff Gladstone Barrett was innocent of all charges alleged.

21. That plaintiff Gladstone Barrett was forced to appear in the Criminal Court of Queens County on December 19, 2018 and said summons/ticket was dismissed that day.

22. As a result of the defendants' conduct the plaintiff suffered the loss of liberty, imprisonment, plaintiff sustained emotional distress, embarrassment, humiliation, economic loss and deprivation of his constitutional rights.

PLAINTIFF – GARTH AMOS

23. On October 9, 2018, at approximately 800 a.m. plaintiff Garth Amos was lawfully driving his van, and had committed neither an infraction nor violation.

24. That the defendant Officer Fischer, and other unknown officers stopped and seized the plaintiff while driving on Linden Boulevard and 172nd Street, Queens, New York in the confines of the 103rd precinct.

25. That plaintiff Amos was seized all without probable cause.

26. That plaintiff Amos was handcuffed and taken to the 113th precinct.

27. That plaintiff Amos was held in lockup thereat for a substantial number of hours.

28. That plaintiff Amos was interrogated by other officers thereafter falsely issued a summons by Defendant Officer Fischer.

29. That plaintiff Amos was innocent of any and all charges.

30. That plaintiff Amos was forced to appear in the Criminal Court of Queens County on December 19, 2018 and said summons/ticket was dismissed that day.

31. As a result of the defendants' conduct the plaintiff suffered the loss of liberty, unlawful imprisonment, plaintiff sustained emotional distress, embarrassment, humiliation, loss of employment and deprivation of his constitutional rights.

PLAINTIFF – DAMAR HECKSTALL

32. On October 9, 2018, at approximately 6:56 a.m. plaintiff Damar Heckstall was lawfully driving his van, and had committed neither an infraction nor violation.

33. That the defendant Officer Goodling, and other unknown officers stopped and ceased the plaintiff while driving on Linden Boulevard and 231st Street, Queens, New York in the confines of the 103rd precinct.

34. That plaintiff Heckstall was seized all without probable cause.

35. That plaintiff Heckstall was handcuffed and taken to the 113th precinct.

36. That plaintiff Heckstall was held in lockup thereat for many hours.

37. That plaintiff Heckstall was interrogated by other officers, thereafter falsely issued a summons by Defendant Officer Goodling.

38. That plaintiff Heckstall was innocent of all charges.

39. That plaintiff Heckstall was forced to appear in the Criminal Court of Queens County on December 19, 2018 and said summons/ticket was dismissed that day.

40. As a result of the defendants' conduct the plaintiff suffered the loss of liberty, imprisonment, plaintiff sustained emotional distress, embarrassment, humiliation, economic loss and loss of job, and deprivation of his constitutional rights.

PLAINTIFF – ASHWELL MILLER

41. On October 9, 2018, at approximately 8:45 a.m. plaintiff Ashwell Miller was lawfully driving his van, and had committed neither an infraction nor violation.

42. That the defendant Officer Lyons, and other unknown officers stopped and ceased the plaintiff while driving on Linden Boulevard and 197th Street, Queens, New York in the confines of the 103rd precinct.

43. That plaintiff Miller was seized all without probable cause.

44. That plaintiff Miller was handcuffed and taken to the 113th precinct.

45. That plaintiff Miller was held in lockup thereat for many hours.

46. That plaintiff Miller was interrogated by other officers and thereafter falsely issued a summons by Defendant Officer Lyons.

47. That plaintiff Miller was innocent of any and all charges.

48. That plaintiff Miller was forced to appear in the Criminal Court of Queens County on December 19, 2018 and said summons/ticket was dismissed that day.

49. As a result of the defendants' conduct the plaintiff suffered the loss of liberty, imprisonment, plaintiff sustained emotional distress, embarrassment, humiliation, economic loss and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

50. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

51. Defendants and unknown officers under color of state law and acting without

probable cause, justification, or otherwise privileged, subjected plaintiffs to false arrest, false imprisonment, as well as said conspiracy, acts, and omissions to act without due process of law and in violation of 42 U.S.C. §1983 thereby depriving plaintiff of their rights, privileges and immunities secured by the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the United States Constitution, including, without limitations, deprivation of the following constitutional rights, privileges and immunities:

- (a) Plaintiffs were deprived of their First Amendment right to speak freely and to petition the government for redress of grievances;
- (b) Plaintiffs were deprived of their Fourth Amendment right to be free from the use of excessive or unreasonable force;
- (c) Plaintiffs were deprived of their Fourteenth Amendment right to liberty, without due process of law;
- (d) Plaintiffs were deprived of their Fourteenth Amendment right to equal protection of law;

52. As a result of the defendants' conduct, plaintiffs were unlawfully imprisoned and were conscious of said unlawful imprisonment and suffered emotional injury including mental suffering humiliation, embarrassment; therefore, plaintiffs had been damaged in a sum which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Violation of NYS and NYC Human and Civil Rights Law)

53. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

54. Defendants conduct herein denied plaintiffs the equal protection of the law, discrimination against them and caused them injuries.

55. As a result, plaintiffs' rights under NYS and NYC were violated.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Negligence Screening, Hiring and Retention under the laws of the State of New York)

56. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set

forth set forth herein.

57. Upon information and belief, Defendant City failed to use reasonable care in the screening, hiring, and retention of the aforesaid individual Defendants who conducted and participated in the violation of plaintiffs' rights.

58. As a result, plaintiffs suffered injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Negligent Training and Supervision under the Laws of the State of New York)

59. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

60. Upon information and belief, Defendant City failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of the plaintiffs.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Negligence under the Laws of the State of New York)

61. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

62. Plaintiffs' physical and emotional injuries herein were caused by the carelessness, recklessness and negligence of the Defendants and their employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Respondent Superior liability under the laws of the State of New York)

63. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

64. Defendant City is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein that caused Plaintiffs' injuries.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Malicious Abuse of Process under the laws of the State of New York)

65. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

66. As a result of the foregoing, Plaintiffs were subjected to malicious abuse of process by the defendants which led to them being arrested, unlawfully imprisoned and dragged through the Court system because an unknown superior utilized this unconstitutional process to obtain information concerning another crime which neither of the plaintiffs had any nexus to.

67. As a result of Defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
NYS CONSTITUTIONAL VIOLATIONS

68. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

69. Defendant and other unidentified officers subjected plaintiffs to the foregoing conspiracies, acts, and omissions to act without due process of law, thereby depriving plaintiffs of their rights, privileges and immunities secured by Article 1, §§1, 6, 8, 9, 11 and 12 of the New York State Constitution, including, without limitation, the following deprivations of his rights, privileges and immunities:

- (a) Plaintiffs were deprived of their rights to speak freely and to petition the government for redress of grievances, in violation of §§ 8 and 9 of the Constitution of the State of New York;
- (b) Plaintiffs were deprived of their rights to be free from unreasonable seizure to their person, in violation of § 12 of the Constitution of the State of New York;
- (c) Plaintiffs were deprived of their rights to liberty, without due process of law, in violation of §6 of the Constitution of the State of New York;

70. As a result of the defendants' conduct, plaintiffs suffered emotional injuries, including mental suffering, humiliation, embarrassment, therefore, plaintiffs have been damaged

in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Intentional and Negligent Infliction of Emotional Distress under the laws of New York)

71. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

72. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

73. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant City.

74. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant City.

75. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiffs.

76. As a result of the aforementioned conduct, plaintiffs suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS,

(False Arrest -Unlawful Seizure under the 4th Amendment)

77. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

78. There was no probable cause for the arrest, unlawful seizures or the continued incarceration of plaintiffs.

79. As such these defendants' actions resulted in violations of plaintiffs' constitutional rights under the Fourth and Fourteenth Amendments.

80. As a result of the aforementioned conduct of defendants, plaintiffs' constitutional

rights to be free from unreasonable seizure were violated and they sustained physical, economic and emotional injuries.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS,
(Malicious Prosecution)

81. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

82. Defendants knew that by filing false charges against Plaintiffs, they would very likely be held in custody, have to endure numerous court appearances, and the expense of hiring an attorney and despite such belief, the Defendant fabricated evidence that plaintiffs engaged in serious criminal activities.

83. Due to defendants' actions, plaintiffs were deprived of life and liberty interest.

84. Defendants' actions constituted malicious prosecution because they knowingly filed false and unsubstantiated charges against plaintiffs, failed to drop them, or inform the District Attorney's office of the falsity of the charges and instead pursued the charges knowing full well that the charges were not only false but trumped up, and fabricated.

85. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time and they were subjected to violations of their state and federal rights.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLANITIFFS
LIABILITY OF DEFENDANT CITY
FOR CONSTITUTIONAL VIOLATIONS MONELL (STATE & FEDERAL)

86. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

87. At all times materials to this complaint, the defendant City of New York, acting through its police department, the New York City Police Department, had in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the

unconstitutional conduct of the defendant police officers.

88. The aforementioned customs policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included but not limited to seizing persons, without justification thereto, and thereafter concealing same by filing false charges.

89. The defendant City of New York, failed to effectively screen, hire, train, supervise and discipline its police officers and employees, including the defendant police officers and unidentified officer(s) herein, for their refusal to report false arrest charges of a person by fellow officers where there was no justification thereof.

90. The existence of such de facto policies and/or well-settled and widespread customs and practices has been known to supervisory and police-making officers and officials of the Police Department and the City of New York for a substantial period of time.

91. Despite knowledge of such illegal de facto policies and practices, the supervisory and police-making officers and officials of the Police Department and the City of New York have not taken adequate steps to terminate these policies and practices, have not disciplined individuals who engage in such practices, or otherwise properly trained police officers with regard to the constitutional and statutory limits on the exercise of their authority, and have instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to or negligent disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

92. Defendant NYC as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, including the defendants herein, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by seizing persons and thereafter falsifying official records etc, and in so failing, the defendant NYC has caused, encouraged, condoned and allowed the defendants in this case to engage in the aforementioned unlawful conduct without fear of consequences for their illegal acts which did cause the plaintiffs to be subjected to deprivations of their civil rights.

93. That the defendant municipality, NYC, alerted to the existence of a significant number of false arrests by its police officers, by repeated complaints, of false arrest, and fabrication of charges and reports exhibited deliberate indifference thereto in that it was obvious to NYC that there was a need for more and/or improved supervision of police officers in order to protect against constitutional violations and in spite of repeated complaints of civil rights violations, there have been no meaningful attempts on the part of NYC to investigate or forestall further incidents.

94. That the defendant municipality, NYC, has also been alerted by its employee officers false arrest, fabrication of official police reports, the use of unlawful force by its police officers, and that the culture of violence by NYPD has been allowed to exist without repercussions to the officers who engage in such behavior. This behavior was permitted to continue in the case at bar.

95. Moreover, the action of the individual defendants resulted from and were taken pursuant to a de facto policy and/or well-settled and widespread custom and practice of the City of New York, which is implemented by police officers of said City. Where seizures without probable cause are concealed by false arrest and malicious prosecution upon innocent citizens. Where the upward mobility of the officers within ranks is accomplished. This conduct is open and notorious and frequently used by officers to conceal improper conduct by said officers. This is a well established practice and custom of the defendant NYC police department which has been the subject of a voluminous number of civil rights actions.

96. The existence of such de facto policies and/or well-settled and widespread custom and practices have been known to supervisory and police-making officers and officials of the Police Department of the City of New York for a substantial period.

97. Each and every year, thousands of civil rights actions alleging false arrest and unlawful imprisonment and the use of unlawful force by police officers are brought and "settled" by the defendant New York City. Each year, the defendant, New York City spends millions of dollars to resolve said actions. Each year hundreds if not thousands of matters containing allegations of false arrest, unlawful and excessive force and unlawful imprisonment by the

defendant New York City and its police officers are settled and/or brought to trial. A multitude of these matters could be cited if necessary. Of greatest concern, is the fact that the defendant NYC is in possession of all information concerning thousands of similar matters settled. Furthermore, these facts alone substantiate the fact that not only is the defendant New York City aware of said police practices and usages, but moreso, that defendant NYC has failed to stop said practices and has condoned said practices and usages.

98. Upon information and belief, and without limiting the foregoing, the City of New York has specifically failed to terminate said practices in the following manner:

- (a) Has failed to properly train, instruct, and discipline police officers with regard to the existence of probable cause;
- (b) Has failed to properly train, instruct, and discipline police officers with the use of fabrication of false charges.
- (c) Has failed to properly train, instruct, and discipline police officers whether someone is in need of medical attention;
- (d) Has failed to properly train, instruct, and discipline police officers with regard to perjuries testimony and police reports;
- (e) Has permitted police officers to maintain the "blue wall of silence" and to conceal and fail to report the misconduct of other police officers;
- (f) Has structured procedures and standards at the Civilian Complaint Review Board, the Office of Chief of Department, and Internal Affairs in such a manner that an officer's denial of the charges is ordinarily sufficient to remove the threat of any discipline or restraint upon the officer's conduct and to prevent any objective review of the officer's conduct.
- (g) Has failed to require police officers to accept independent and objective review of civilian complaints and imposition of discipline.
- (h) Has failed to properly structure the police department to review and discipline the existence of unlawful conspiracy by defendant officers.

99. Defendant City of New York is directly liable and responsible for the acts of defendants because it has repeatedly and knowingly failed to properly supervise, train and discipline said officers and because it repeatedly and knowingly failed to enforce the rules and regulations of the New York City Police Department and the laws of the State of New York and the United States.

100. The knowing and repeated failure of the defendant City of New York to properly supervise, train and discipline said officers actually caused the injuries to plaintiffs alleged herein.

101. Upon information and belief, defendant City of New York knew or should have known that the acts alleged herein would deprive plaintiffs of their rights without due process of law, in violation of the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§1, 6, 8, 9, 11 and 12 of the Constitution of the State of New York, including, without limitation, such rights as plaintiffs' rights to freedom from loss of liberty, freedom of speech, rights to petition for redress of grievances, right to be free from unreasonable seizures and the use of unlawful and excessive force, right to due process, and right to equal protection of the laws.

102. The defendant City of New York is also directly liable and responsible for the acts of defendants under the doctrine of respondeat superior.

103. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY OF NEW YORK has permitted and allowed the employment and retention of individuals as police officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiffs herein.

104. As a result of the foregoing, plaintiffs were deprived of liberty, sustained great emotional and physical injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
FOR ATTORNEY FEES

105. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

106. Pursuant to Title 42 Us Code Section 1983, plaintiffs are entitled to recover

reasonable attorney fees for the violation of said statute.

107. as a result thereof, plaintiffs are entitled to recover such amount as and for attorney fees as to the Court may seem reasonable.

WHEREFORE, in consideration of each and every claim the plaintiffs demands judgment against the defendants on each cause of action in an amount which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction;

- A. Compensatory damages in the amount of ONE MILLION (\$1,000,000) for each Plaintiff;
- B. Punitive damages in the amount of ONE MILLION (\$1,000,000) DOLLARS for each plaintiff;
- C. The convening and empaneling of a jury to consider the merits of the claims herein;
- D. Costs and interest and attorney's fees;
- E. Such other and further relief as this court may deem appropriate and equitable, including injunctive and declaratory relief as may be required in the interests of justice.

Dated: Queens, New York
July 23, 2019

Yours, etc.,


EDWARD ZALOBBA, Esq.
Attorney for Plaintiffs
118-21 Queens Boulevard, Ste. 504
Forest Hills, New York 11375
(718) 261-3000

VERIFICATION

STATE OF NEW YORK

COUNTY OF QUEENS

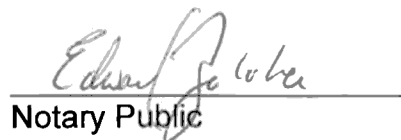
I, GLADSTONE BARRETT, being sworn, say:

As the plaintiff in this action, I have read the foregoing Summons & Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.



GLADSTONE BARRETT

Sworn to before me the
22 day of July, 2019


Notary Public

EDWARD ZALOB
Notary Public, State of New York
NO. 02ZA-5083655
Qualified in Queens County
Commission Exp. September 15, 2022

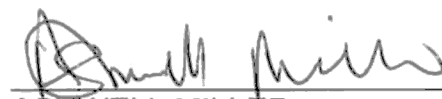
VERIFICATION

STATE OF NEW YORK

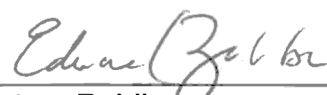
COUNTY OF QUEENS

I, ASHWELL MILLER, being sworn, say:

As the plaintiff in this action, I have read the foregoing Summons & Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.


ASHWELL MILLER

Sworn to before me the
10th day of July, 2019


Notary Public

EDWARD ZALOB
Notary Public, State of New York
NO. 02ZA-5083655
Qualified in Queens County
Commission Exp. September 15, 2022

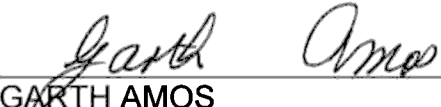
VERIFICATION

STATE OF NEW YORK

COUNTY OF QUEENS

I, GARTH AMOS, being sworn, say:

As the plaintiff in this action, I have read the foregoing Summons & Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.


GARTH AMOS

Sworn to before me the
16 day of July, 2019


Notary Public

EDWARD ZALOBIA
Notary Public, State of New York
NO. 02ZA-5083655
Qualified in Queens County
Commission Exp. September 15, 2022

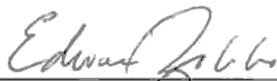
VERIFICATION

STATE OF NEW YORK

COUNTY OF QUEENS

I, DAMAR HECKSTALL, being sworn, say:

As the plaintiff in this action, I have read the foregoing Summons & Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.


DAMAR HECKSTALLSworn to before me the
23 day of July, 2019
Notary Public

EDWARD ZALOB
Notary Public, State of New York
NO. 02ZA-5083655
Qualified in Queens County
Commission Exp. September 15, 2022